

STATE OF NEW YORK

9279--A

IN SENATE

February 24, 2026

Introduced by Sen. GIANARIS -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to the operation of gene synthesis providers and manufacturers of gene synthesis equipment

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "bioterrorism prevention act".

3 § 2. The public health law is amended by adding a new article 32-B to
4 read as follows:

ARTICLE 32-B

GENE SYNTHESIS LABS

5
6 Section 3230. Operation of gene synthesis providers and manufacturers of
7 gene synthesis equipment.

8
9 § 3230. Operation of gene synthesis providers and manufacturers of
10 gene synthesis equipment. Any gene synthesis provider or manufacturer
11 of laboratory equipment intended for use by a gene synthesis provider
12 shall operate in accordance with rules and regulations issued by the
13 department, including regulations on identifying potentially dangerous
14 genetic sequences, screening potential customers and retaining records
15 of genes synthesized and/or delivered. The department shall utilize
16 generally accepted industry standards and take into consideration recom-
17 mendations and protocols set by the international gene synthesis consor-
18 tium and/or other similar nationally or internationally recognized rele-
19 vant organizations to draft such rules and regulations. For the purpose
20 of this section, "gene synthesis provider" shall mean any entity that
21 synthesizes and distributes synthetic nucleic acids to a customer or to
22 a distributor.

23 § 3. This act shall take effect on the ninetieth day after it shall
24 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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